

****22.08.2022****

****A new sanction for violation of GDPR****

The National Supervisory Authority has completed an investigation in July 2022 regarding the operator Enel Energie Muntenia S.A., following which a violation of the provisions of the General Data Protection Regulation (GDPR) was found. The operator was sanctioned with a fine and a warning, as follows:

- a fine in the amount of 49,337 lei (equivalent to 10,000 euros) for violating the provisions of Article 32 of the GDPR;
- a warning for violating the provisions of Article 33 of the GDPR.

The investigation was initiated following complaints submitted by an individual who reported that, after a phone request to Enel Energie Muntenia S.A., they received an email response from the address contacteem.ro@enel.com addressed to another client, an individual, accompanied by certain documents that could be viewed.

During the investigation, it was noted that the operator Enel Energie Muntenia S.A. did not provide clear information regarding the reasons why one of its employees mistakenly sent the response to the complainant of the National Supervisory Authority. Furthermore, the operator did not present evidence indicating that it had taken remedial measures to reduce the risk to which personal data were exposed and to prevent future disclosure or illegal access to personal data.

The operator did not provide evidence regarding the notification of this incident to the National Supervisory Authority. Given the circumstances of this case, as described above, the security incident should have been notified under Article 33 of the GDPR, within a maximum of 72 hours from the date on which Enel Energie Muntenia S.A. became aware of it.

As such, the operator Enel Energie Muntenia S.A. was sanctioned with a fine, as it did not adopt sufficient security measures in accordance with Article 32 of the GDPR, which led to the occurrence of a security incident by the email transmission of documents visibly containing the personal data of a data subject to a third party, as well as with a warning for failing to notify the National Supervisory Authority for Personal Data Processing.

Additionally, under Article 58(2)(d) of the GDPR, corrective measures were imposed on the operator Enel Energie Muntenia S.A.:

- the corrective measure to ensure compliance with the GDPR for personal data processing operations, by implementing appropriate technical and organizational security measures specific to the nature of the processing and identified risks, throughout the data processing cycle, particularly regarding the training of individuals processing data under its authority (employees or collaborators), the regular verification of compliance with the instructions given to them, the automation of certain processes to reduce the risks of illegal or unauthorized processing of personal data, as well as the rapid detection, management, and reporting of situations involving breaches of personal data security;
- the corrective measure to ensure compliance with the GDPR for personal data processing operations, by contacting the complainant of the Authority (at their email address) to request them to take measures for the deletion or destruction, as appropriate, of the personal information they accessed as a result of receiving the email correspondence addressed to a third party;
- the corrective measure to ensure compliance with the GDPR for personal data processing operations, by adopting internal measures to reduce the risks to which the personal data of the third party were exposed, to prevent future disclosure or illegal access to their personal data.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****